SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Criminal Appeal No. 891 of 2023 (YEAR: 2024)

CORAM: B.R. GAVAI, SANDEEP MEHTA

Prem Prakash
... Appellant(s) / Petitioner(s)
Versus
Union of India
... Respondent(s)

Acts Referred:	Prevention of Money Laundering Act, 2002, Indian Evidence Act, 1872
Sections:	Section 50 PMLA, Section 25 Evidence Act

JUDICIAL HEADNOTE & SUMMARY

Clarified the evidentiary admissibility of statements recorded under Section 50 PMLA, affirming that statements procured while in police or judicial custody remain vulnerable to evidentiary exclusions.

RATIO DECIDENDI

The Court held that: Clarified the evidentiary admissibility of statements recorded under Section 50 PMLA, affirming that statements procured while in police or judicial custody remain vulnerable to evidentiary exclusions. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in Prem Prakash v. Union of India (Criminal Appeal No. 891 of 2023) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Prevention of Money Laundering Act, 2002, Indian Evidence Act, 1872, particularly Section 50 PMLA, Section 25 Evidence Act. Clarified the evidentiary admissibility of statements recorded under Section 50 PMLA, affirming that statements procured while in police or judicial custody remain vulnerable to evidentiary exclusions.

OPERATIVE ORDER

ORDER: Decided